



FEDERATION OF
**MASTER
BUILDERS**

Domestic Building Contract

STANDARD

We are members of the
Federation of Master Builders

England

Domestic Contract Standard

About the Federation of Master Builders

The Federation of Master Builders (FMB) is the UK's largest trade association for small to medium-sized (SME) construction firms. Established in 1941, it is independent and non-profit, lobbying for members at national and local levels. The FMB supports builders across the UK with expert advice, business services and practical guidance. Committed to raising industry standards, all members are professionally vetted and independently inspected.

About FMB Contracts

These contracts have been produced by the Federation of Master Builders (FMB) **exclusively for use by FMB members and their clients**, and have been developed in partnership with Sarah Fox, contract simplifier at 500 Words Ltd, with additional guidance from Browne Jacobson Solicitors. Lindsays LLP in Edinburgh and Nuala Maguire of Eversheds-Sutherland NI in Belfast, have provided additional advice.

Building Safety Laws

This contract refers to the Building Safety Laws (BSL), which mean the Building Safety Act 2022, the Defective Premises Act 1972, the Building Act 1984, the Building Regulations 2010, and any other statutory requirements applicable to the work which are in force at the date of this contract. Different versions of these laws apply in England, Wales, Scotland and Northern Ireland, and these contracts reflect that.

The BSL impose duties and obligations on all builders, clients and designers, and grant certain rights to clients. Your main duties and obligations are set out in section 2. This contract does not affect those duties, obligations, or rights. You could take legal advice if you are unsure about any duties, obligations, or rights under the BSL. Guidance is also available from www.gov.uk/guidance/the-building-safety-act.

Using this contract

This contract is a template for use for a wide range of projects and is appropriate for work:

- of any value, but of a simple nature;
- without an independent supervising officer; or
- where there is no named subcontractor or named supplier (or both).

This contract is not for use if the work involves a higher-risk building as defined under the BSL. A higher-risk building is one which:

- is 18 metres in height or has at least 7 storeys; and
- in either case, is a care home or is a hospital or, if in England, contains at least two residential units.

You could take legal advice to check that this contract suits a specific project or your own needs.

The contract must be completed by adding details on pages 1 and 2 and attaching any relevant documents that describe the work. It should then be signed by the builder and the client.

FMB contracts can only be used by current FMB members. Please check FMB membership is current by visiting www.fmb.org.uk/find-a-builder or by calling FMB Membership Services on 0330 333 7777.

SIMPLE BUILDING CONTRACT FOR DOMESTIC WORK



This contract made on

(Date)

records the client (you):

(Name)

of:

(Address)

(Telephone)

and the builder (us, we):

(Name)

of:

(Address)

(Telephone)

(FMB Membership No)

agreeing to work together on a project at (site):

(Address)

WE (THE BUILDER)

We will provide this work, services, goods and materials (work):

(Describe work)

The work is described in these documents:

Drawings

(Ref/date)

Estimate

(Ref/date)

Specification or work schedule

(Ref/date)

These other documents

(Ref/date)

Building Regulations Principal Contractor (only for work which the building regulations apply to):

We are the only builder working on the project and you are appointing us as the Building Regulations Principal Contractor – see condition 1B

☐ Yes ☐ No

Building Regulations Principal Contractor details:

(Name)

(Company)

(Address)

(Telephone)

Competency requirements (only for work which the building regulations apply to):

We have explained to you that we have the skills, knowledge, experience and behaviours to fulfil our duties under the building regulations, and that we have the organisational capability to ensure our employees and subcontractors comply with all relevant regulations.

☐ Yes ☐ No

We are unable to carry out duties that are beyond our competence.

We (builder) will start the work on (start date):
and the work will be substantially completed by (completion date):

(Date)

(Date)

The period between the start date and the completion date (work period) is an estimate only and completion may be delayed if you delay in providing us with information or assistance if we both agree any change to the work or unexpected works – see condition 14.

The work

Includes a significant design element by us (builder)
– see condition 6.

☐ Yes ☐ No

Is covered by an Insurance Backed Guarantee
or new build home warranty - see condition 1.10

☐ Yes ☐ No

We will make good defects for:

months after completion.

Our (builder's) total liability for any claim is:

£ excluding claims for death or personal injury.

SIMPLE BUILDING CONTRACT FOR DOMESTIC WORK



YOU (THE CLIENT)

You (the client) will pay:

Our invoices within days.

We estimate the price of the work at current rates is: £

We will send you (see conditions 2.6 and 2.7):

regular bills every **or**
 staged bills for instalments of the price (see attached payment schedule).

This price includes value added tax at the current rate.

You will pay the rate of VAT which applies when any bill is sent.

This sum may increase or decrease under conditions 8 and 9.

You (the client) will also pay:

Interest on overdue sums at an annual rate of 10%.

We may invoice you for a deposit of £ which will be deducted from the next regular bill our final bill.

You (the client) will provide:

☐ Toilet and washing facilities ☐ Water

☐ Electricity ☐ Storage space

You intend to live at the property while we do the work ☐ Yes ☐ No

You are not putting any limits on how or when the site can be used. We will normally carry out the work during the weekdays between the hours of 08.00 and 17.00.

You (the client) may cancel the work:

By sending written notice within 14 days of the date of this contract (without charge, except as set out on page 13) using the form on page 13 if you wish. You also have other rights to end this contract set out in condition 12.

BUILDING REGULATIONS PRINCIPAL DESIGNER (WHERE APPLICABLE)

Where you have employed a designer for the work (such as an architect), that designer must fulfil the duties of the Building Regulations Principal Designer. If we are the only designer working on the project, and we are competent to fulfil those duties, then we are the Building Regulations Principal Designer.

Building Regulations Principal Designer
(only for work which the building
regulations apply to):

We accept the role of Building Regulations Principal Designer
- see conditions 1A and 6. ☐ Yes ☐ No

Building Regulations Principal Designer details:

(Name)

(Company)

(Address)

(Telephone)

SIGNED AS A CONTRACT

There will be two copies of this contract – one which we keep and one for you. Both the builder (we) and the client (you) must sign this contract, and put our respective initials alongside anything crossed out or added in handwriting on a paper copy. On page 13 we explain your right to cancel this contract. Please read the whole document and its notes carefully before you sign.

Signed on behalf of builder by:

(Name)

(Signed)

Signed on behalf of client (first individual) by:

(Name)

(Signed)

Signed on behalf of client (second individual) by:

(Name)

(Signed)

NOTE 1: Who is the client?

- The client can include people who do not own the property. However, all property owners must be named as the client.
- If the client is a tenant, their landlord does not need to be involved in the contract as the client. If the client holds a tenancy agreement or a lease, that is probably enough. However, it is important to check if the client needs the landlord's (or freeholder's) approval for the work and, if so, whether it has been given. The client should get this permission BEFORE signing this contract.

1. Our main obligations

- 1.1 We will make suitable arrangements for planning, managing and monitoring the project (including allocation of sufficient time and other resources) so as to ensure compliance with all relevant requirements of the building regulations.
- 1.2 We will take all reasonable steps to provide sufficient information about the work to assist you and any other contractors or designers to comply with all relevant requirements of the building regulations.
- 1.3 We will co-operate with you and any other contractors or designers to the extent necessary to ensure that the work is in compliance with all relevant requirements of the building regulations.
- 1.4 We will carry out the work:
 - with reasonable skill and care and to a reasonable standard;
 - by the end of the work period (as extended under condition 14, if it applies); and
 - in compliance with the BSL (including all relevant requirements of the building regulations).
- 1.5 We will provide each worker under our control with appropriate supervision, instructions and information to ensure that the work is in compliance with all relevant requirements of the building regulations.
- 1.6 Where applicable, we will consider any work which is being carried out by others and which directly relates to our work, and we will report any concerns as to the compliance of that work with all relevant requirements of the building regulations.
- 1.7 Where applicable, we will take all reasonable steps to satisfy ourselves that any person who carries out the work on our behalf meets the competency requirements prescribed by the building regulations.
- 1.8 We will notify you as soon as practicable if we, or any person who carries out the work on our behalf, no longer meets the competency requirements prescribed by the building regulations.
- 1.9 At the end of the work period, as long as you pay all amounts due, we will give you any guarantees, test certificates, and so on which apply to the work. Where applicable, we will also give you a compliance declaration confirming we have fulfilled our duties under the building regulations. You should keep these in a safe place in case you need them in the future.
- 1.10 If stated on page 1, the work will be covered by an insurance-backed guarantee, such as the FMB Building Work Guarantee. Where the work is building one or more new homes, the work will be covered by a new build home warranty.

1A. Our obligations as Building Regulations Principal Designer (where applicable)

- 1.11 If we are Building Regulations Principal Designer for the project, we will comply with the duties and obligations under this section 1A.
- 1.12 We will:
 - plan, manage and monitor the design work during the design phase, and
 - coordinate matters relating to the design work so that all reasonable steps are taken to ensure that the building work, if built in accordance with the design, will comply with all relevant building regulations.
- 1.13 We will take all reasonable steps to ensure:
 - any other designer or person involved in relation to the design work will co-operate with you, us, the Building Regulations Principal Contractor, and each other, and will comply with their duties under the building regulations; and
 - the building work of all designers is co-ordinated so that the building work, if built in accordance with the design, will comply with all relevant building regulations.
- 1.14 We will liaise with the Building Regulations Principal Contractor and share any information relevant to the planning, management, and monitoring of the building work, and the co-ordination of the building and design work for the purposes of ensuring compliance with all relevant building regulations.
- 1.15 We will work with the Building Regulations Principal Contractor to ensure compliance with the relevant building regulations.
- 1.16 If requested, we will assist you with providing information to any other contractor or designer.
- 1.17 No later than 28 days after practical completion of the Works, we, as Principal Designer can provide you with a completion notice.

1B. Our obligations as Building Regulations Principal Contractor (where applicable)

- 1.18 If we are Building Regulations Principal Contractor for the project, we will comply with the duties and obligations under this section 1B.
- 1.19 We will:
- plan, manage and monitor the building work during the construction phase, and
 - coordinate the building work to ensure it complies with all relevant building regulations.
- 1.20 We will take all reasonable steps to ensure:
- any other contractor or person involved in relation to the building work will co-operate with you, us, the Building Regulations Principal Designer, and each other, and will comply with their duties under the building regulations; and
 - the building work of all contractors is co-ordinated so that the work complies with all relevant building regulations.
- 1.21 We will liaise with the Building Regulations Principal Designer and share any information relevant to the planning, management, and monitoring of the design work, and the co-ordination of the building and design work so that it complies with all relevant building regulations.
- 1.22 We will work with the Building Regulations Principal Designer to ensure compliance with the relevant building regulations.
- 1.23 If requested, we will assist you with providing information to any other contractor or designer.
- 1.24 No later than 28 days after practical completion of the Works, we, as Principal Contractor can provide you with a completion notice.

2. Your main obligations

- 2.1 In compliance with your duties under the BSL, you will appoint:
- a designer with control over the design work for the purposes of the building regulations (the Building Regulations Principal Designer); and
 - a contractor with control over the building work for the purposes of the building regulations (the Building Regulations Principal Contractor).
- 2.2 If you fail to make either appointment, then:
- the designer in control of the design phase of the project is the Building Regulations Principal Designer; and
 - the contractor in control of the construction phase of the project is the Building Regulations Principal Contractor.
- 2.3 In compliance with your duties under the BSL, you will provide, and you will respond to any request that we may make for, building information as soon as it is practicable. This means information in your possession or which you can obtain (for example, from any designer employed by you) regarding the work, the planning and management of the project, and any other information we may need to carry out and complete the work in compliance with the BSL.
- 2.4 In compliance with your duties under the BSL, you will co-operate with us (and any designer appointed by you) to the extent necessary to enable us to fulfil our duties and functions under the BSL. This may include, for example, responding promptly to any requests that we may make for building information or for instructions in relation to the work.
- 2.5 You will pay us the price. Any changes to the work or the price will be agreed or determined under condition 8.
- 2.6 If the work period is more than 28 days, and where stated on page 2, we will be entitled to send you regular bills. If we send regular bills, they will be our valuation of any work we have carried out up to that date, together with the cost of all goods and materials delivered to the site and any payments made to our suppliers for goods not yet delivered to the site but intended just for the work, provided such works, goods and materials comply with this contract.
- 2.7 Where stated on page 2, we will send you bills for staged payments as set out on the attached payment schedule. We may send you a revised payment schedule if changes to the work affect the price or works period.
- 2.8 You must pay us within 14 days of receiving our bill or within the period set out on page 2.
- 2.9 You will pay interest at the rate set out on page 2 on any amounts you do not pay, with interest running from the date in clause 2.8 until you finally pay.
- 2.10 When we have finished the work, we will send you the final bill. The final bill will state our valuation of the final price for the work, including any changes to the price agreed or determined under condition 8. We will liaise with you to amicably agree any changes to the price – if not, those changes will be worked out by us in line with condition 8. VAT will be included in all changes to the price.
- 2.11 Where the price includes a deposit (see page 2 and the payment schedule), we will invoice that deposit before the works start. We will deduct that deposit from the amounts otherwise due in our next bill, unless otherwise noted on page 2. The invoice will confirm which.
- 2.12 You must pay us within 14 days of receiving the final bill or within the period set out on page 2.
- 2.13 Within 5 days of receiving any bill, you must give us written notice if you do not plan to pay the amount of that bill. Your notice must show how much you plan to pay. You must also tell us how you worked out the amount that you are planning to pay. If you do not give us written notice under this condition 2.13, you will have to pay us the amount set out in our bill.

NOTE 2: Defects warranty

The client should consider using an insurance-backed warranty such as the FMB Building Work Guarantee or similar insurance policy to cover the risk of defects covered under the builder's guarantee should they cease trading. Claims (see note 9) resulting from defects where the builder is no longer trading can be expensive to bring and may not provide the compensation the client needs.

3. Starting the work, length of the work and the site

- 3.1 We will start the work on the start date.
- 3.2 You must make the site available to us on the start date and for work period (as extended under condition 14).
- 3.3 You must allow us access to the site and keep the site clear of all obstructions so we can carry out the work.
- 3.4 We will substantially complete the work so that the site is ready to be handed back to you ready for use, even if there are some minor defects (faults) by the end of the work period. However, if we do not complete on time you cannot immediately end this contract.

NOTE 3: Completing the Work

It is particularly important that it is stated on page 2 if the client is not leaving the site empty, but will still be living on all or any part of the site during the work period.

In fixing the work period for completing the work, the builder should take into account any holiday dates or periods such as religious festivals and holidays, bank holidays and any other likely holiday dates. The builder has not taken into account unexpected events, exceptionally bad weather, or other acts outside its control. The completion date can be changed under condition 14 to take account of these events.

If the builder does not complete the work by the completion date, as changed, the builder has broken the contract. But, the client cannot immediately end the contract - they must follow condition 12.

4. Permissions needed for the work, Building Control and completion

- 4.1 You must get the planning permission, and (if relevant) permission from your landlord, and we must get the Building Regulations approval (except where condition 6.1 applies); all before we start the work. If the work is on or near a party wall or fence, or the foundations could affect your neighbours' property, then the Party Wall Act 1996 may apply. Where necessary, you should appoint a party wall surveyor.
- 4.2 We will both comply with all conditions, permissions or regulations relating to the work.
- 4.3 You will pay all the relevant fees in relation to planning, building control and completion.
- 4.4 When the work is completed, we are responsible for submitting the necessary documents and getting formal written confirmation that the work meets those conditions, permissions or regulations. Where applicable, you may be required to sign a statement confirming that to the best of your knowledge the work complies with all applicable requirements of the building regulations. Any delay in the provision of that statement may result in a delay to obtaining a completion certificate for the work, and we will not be responsible for any such delay.
- 4.5 Where applicable, and on request, we will demonstrate the work complies with building regulations.
- 4.6 Where applicable, we will provide a statement confirming we have fulfilled our duties under the building regulations.

NOTE 4: Permissions You Need

If the client does not know what permission they need, they should ask the builder or get advice from an architect or solicitor. When the work is completed, the builder (for building regulations approval) and the client (for planning permission) are also responsible for getting formal written confirmation that the work meets all relevant regulations or permissions.

5. Materials or goods

- 5.1 Any materials or goods we supply will be:
 - new, unless you agree otherwise in writing;
 - of satisfactory quality;
 - as described in the documents;
 - of the appropriate British Standard and codes of practice in force at the date of this contract.

We will supply you with works, goods, materials and services that meet your consumer rights. If you have any concerns that we have not met our legal obligations please contact us.

- 5.2 Subject to clauses 5.3 and 5.4, you can ask for particular materials or goods to be used in the carrying out of the work. You must confirm any such request to us in writing within 7 days of the date of this contract, and the use of the goods or materials which you provide or ask us to use will be at your risk. If available, we will supply the materials or goods within a reasonable period. If not available, we will notify you and supply an alternative of a similar appearance, finish and/or specification unless you instruct us in writing otherwise.

NOTE 5: Materials or goods supplied by the client

The client can ask for particular goods or materials to be used. If this could mean there is the risk of non-compliance with the Building Regulations, the builder should not use those goods or materials, should notify the client, and should request an instruction. If the client does not give an instruction which resolves the issue, the builder has the right to terminate this contract in the manner set out in clauses 13.1 and 13.2.

If the builder considers the use of goods or materials requested by the client may be generally inappropriate (but does not risk non-compliance with the Building Regulations), the builder should notify the client, and should request an instruction. If the client does not give an instruction which resolves the issue, the builder may proceed but the use of the goods or materials will be at the client's risk.

- 5.3 We will notify you in writing and request an instruction from you if we consider any materials or goods which you provide or ask to be used in the carrying out of the work do or may not comply with the building regulations or the use of which means or may mean the work will not comply with the building regulations. If you do not instruct us in writing to use an alternative material or good which we consider resolves the actual or potential non-compliance, we will not continue with the corresponding work and the provisions of clauses 13.1 and 13.2 will apply.
- 5.4 We will not be liable for the fitness for purpose and/or satisfactory quality of any materials or goods you provide or ask to be used in the carrying out of the work.

See **NOTE 5: Materials or goods supplied by the client** above

- 5.5 We will send you, at least 48 hours before the start date, a written list of any goods, materials and fixtures at the site which you need to remove for the work period, so we can carry out the work.
- 5.6 You will not own any materials or goods delivered to the site until you have paid us for them.

6. Design responsibility

- 6.1 If you provide us with design documents (such as drawings or a specification) then you are responsible for making sure the details shown in those documents:
 - meet all legal requirements (including in relation to the BSL and planning) and any associated fees have been paid by or on behalf of you; and
 - are fit for purpose.
- 6.2 We are not liable for any errors or omissions in the design which you provide or which is provided on your behalf (including, for the avoidance of doubt, whether that design, if built, is fit for purpose), and we are not the designer or Building Regulations Principal Designer for the corresponding design. We will notify you in writing and request an instruction from you if we consider any design which you provide or which is provided on your behalf means or may mean the work, if built in accordance with the design, will not comply with the building regulations. If you do not instruct us in writing to use a design which we consider resolves the actual or potential non-compliance, we will not continue with the corresponding work and the provisions of clauses 13.1 and 13.2 will apply.
- 6.3 Where the creator of any design documents which you provide is the Building Regulations Principal Designer, they will be required to sign a statement confirming that to the best of their knowledge they have fulfilled their duties under the building regulations. Any delay in the provision of that statement may result in a delay to obtaining a completion certificate for the work, and we will not be responsible for any such delay.
- 6.4 We will be responsible for making sure the details of any design documents we produce comply with the BSL. We will not be the Building Regulations Principal Designer unless we are the only designer working on the project to which the work relates and/or we accept appointment as the Building Regulations Principal Designer.

NOTE 6: Responsibility for designs in documents

If the client, or someone acting on behalf of the client, gives the builder any design (which may include but not be limited to bills of quantities, drawings or specifications of work), the builder is not responsible for any errors or omissions in that design. If the builder considers the design, if built, means or may mean that the work will not comply with the building regulations, the builder is not required to continue with the work and will notify the client of the non-compliance and request an instruction. If the actual or potential non-compliance is not resolved, the builder may suspend work and potentially end the contract in accordance with clauses 13.1 and 13.2.

The FMB say that:

- The client may need to ask their insurance adviser or broker to check that the builder's public liability insurance policy provides the cover needed.
- If it does not, the builder will need to take out separate insurance to meet condition 7.6 which is included in the Price.

7. Responsibility for loss and damage, and insurance

- 7.1 You are responsible for (and should insure against) any loss of and damage to any existing structures and contents, unless it falls within our obligations in condition 7.4.
- 7.2 You must take out and keep an adequate insurance policy for your liability under condition 7.1. You will provide details when we ask. You must notify your household insurer that building works are going to take place.
- 7.3 You are not responsible for insuring the work.
- 7.4 We will only be responsible for any loss of and damage to any existing structures and contents if the loss and damage is caused by our negligence or by the negligence of any person we are responsible for. If part of the loss and damage is caused by someone else, we will only pay a fair share.
- 7.5 We will be responsible for insuring against any loss of and damage to the work during the work period (as extended under condition 14) or until you end this contract (under condition 12), whichever happens first.
- 7.6 If the work involves a material design element or specification by us (which will be stated on page 1), we will:
 - take out suitable design insurance cover for at least the final estimated value of the work; and
 - continue to keep that insurance until the end of the period during which legal action for any claim can be started.

See **NOTE 6: Responsibility for designs in documents** above and **NOTE 11: Period for claims and defects** on page 10

- 7.7 We will take out and keep adequate insurance policies for our liability under condition 7. We will provide details when you ask.
- 7.8 We will pay you any losses and damages you have to pay as a result of your legal liability for personal injury to, or the death of, any person arising out of or in the course of, or caused by carrying out, the work. This does not apply if condition 7.9 applies.
- 7.9 You will be responsible for personal injury or death caused by your negligence or the negligence of any person you are responsible for.
- 7.10 We will pay you any losses and damages you have to pay as a result of your legal liability for loss of or damage to any property of another person. This only applies if the loss or damage:
 - arises out of, or in the course of, or is caused by carrying out, the work; and
 - is caused by our negligence or the negligence of any person we are responsible for.
- 7.11 We will include you as an insured person under all insurance policies, which we must keep under this condition 7. This is called an 'indemnity to principals' clause.
- 7.12 You or we must immediately let the insurers know about any claims. You and we must keep to the terms and exclusions of the insurance policy. If you or we fail to do this, the insurance may no longer be valid.
- 7.13 We can provide an FMB Building Work Guarantee for the work.

8. Changing the work

- 8.1 We may need to change the work to meet statutory requirements, for supply chain issues, or unexpected events beyond our control. If either of us wants to change the work (whether to add, substitute or leave out any works, goods or materials), you or we must:
 - let the other know exactly the changes wanted in writing; and
 - confirm these changes in writing within 7 days, if you or we first ask for these changes in person.
- 8.2 If an appropriate local authority or public utility officer instructs a change to the work, we will carry out that change PROVIDED THAT we give you written notice before we start carrying it out. However, if you can change that instruction while still meeting your obligations under condition 6, you may do so. But you must tell us, in writing, before we start carrying out that change.
- 8.3 In both these events, we will liaise with you to amicably agree changes to the price based on our estimate under condition 8.5.

NOTE 7: Changing the work and the price

The FMB suggests that:

- the client confirms any change instructions, preferably in writing, at the time or as soon as possible afterwards;
- the builder writes the details of the change twice, with both sets signed by the client and the builder; and
- if possible, for the client and the builder to amicably agree the cost of any change (whether a fixed price or an estimate), at the time. If the client does not agree the amount at the time, the builder should give them an estimate. If not, it must write on the change instructions that no change to the price has been agreed and no estimate has been given.

The FMB provides a Changing the Work form that can be used to document agreed changes.

Unexpected work can arise during the course of the work, for example, unsuitable foundations which were not expected at the time of pricing the work. These will normally result in extra costs, which will be agreed or determined under condition 8. Materials costs can also rise unexpectedly, which will be agreed or determined in the same way.

- 8.4 The change to the price will be made when both you and we come to a spoken agreement and will be recorded in writing ideally before, but if not then after we start carrying out that change. We will also record any changes to the payment schedule or estimated monthly bills.
- 8.5 We will provide you with an estimate of the change to the price based on (in this order):
- any priced documents, if any;
 - the rates in our estimate, if any;
 - a reasonable amount for the work done or a reasonable sum for goods or materials supplied.
- 8.6 Every change to the work which means that there will be extra materials, works or services to be provided by us (rather than a change in the work leaving something out or substituting items of the same value), may result in an increase in the price and a change to the work period.

9. Unexpected work

If unexpected work arises, such as unsuitable foundations or defects in existing structures, unavailable supplies, new regulations or other unexpected events, we will tell you and ask how you want us to go ahead. If so, conditions 8 and 14 will apply.

See **NOTE 7: Changing the work and the Price** above

10. Others involved in the project

You may not use or instruct our employees, subcontractors or tradespeople. If you do, you will have to pay us for the cost of any works, goods or materials they provide.

11. Health and safety

- 11.1 We will be responsible for compliance with all statutory requirements in relation to health and safety affecting the carrying out of the work.
- 11.2 If the Construction (Design and Management) Regulations 2015 (CDM) apply, we must each carry out our respective obligations.
- 11.3 Your obligations:
- You are the client under CDM.
 - You are appointing us as the principal contractor under CDM.
 - You must appoint a principal designer under CDM who, if we agree, may be us.
- 11.4 Our obligations:
- We are the principal contractor, and, if we agree and you appoint us, the principal designer under CDM.
 - We will co-ordinate and manage health and safety issues from the design and early stages of preparation through to completing the work.
 - We will prepare the health and safety file and any other documents required to comply with statutory requirements in relation to health and safety.
 - We will use best endeavours to require that all our subcontractors and employees comply with all statutory requirements in relation to health and safety.

12. Your right to cancel or end this contract

You also have a right to cancel this contract for a period of 14 days from its date without having to provide a reason. Please see the right to cancel on page 13 for more information.

Without affecting your other legal rights and remedies, you can end this contract if one (or more) of these circumstances apply:

- 12.1 without reasonable cause, we:
- stop work for 14 days in a row, or fail to turn up for work regularly; and
 - you send us a written notice, telling us to restart work or turn up to work regularly and we do not do this within 7 days of receiving your notice;

NOTE 8: Rights to end this contract

If there is a dispute over the client ending this contract or the builder suspending it, you will have to prove that a notice has been served (or sent) to the other. You may choose to send this notice by recorded delivery.

- 12.2 we become insolvent or unable to pay our debts including bankruptcy, liquidation, receivership or administration;
- 12.3 we fail to complete the work in the work period, as extended under condition 14.
- However, we can still use all our legal rights and remedies.

13. Our right to suspend or end this contract

13.1 Without affecting our other legal rights and remedies, we can suspend all or part of our obligations under this contract if one (or more) of these circumstances apply:

- you fail to pay any amount within the period set out above and still fail to pay for 7 days after receiving our written notice demanding payment and warning you of our intention to suspend all or part of our obligations under the contract;

See **NOTE 8: Rights to end this contract** above

- you, or anyone you employ or your agent, interferes with or obstructs the work or fails to make the site available for us (without good reason) for the work period (or any one or more of these);
- the work is delayed due to your fault for more than 14 days in a row.
- you fail within 7 days of a notification given by us in accordance with clause 5.3 and/or clause 6.2 to give us an instruction in writing which we consider resolves the actual or potential non-compliance with the building regulations.

13.2 We can end our obligations under this contract if you remain at fault for 14 days after we suspend. We can end our obligations immediately if you become insolvent or unable to pay your debts.

13.3 Our right to suspend the work ends when you pay the amount due in full unless in the meantime we have ended our obligations under the contract.

13.4 After we end this contract, you will pay us within 21 days of our request for payment:

- all payments due under condition 2; and
- our reasonable costs incurred in carrying out the work which have not been billed by the date of our notice; and
- (where we ended for your fault under conditions 13.1 to 13.3) any reasonable losses we suffer (including loss of profit) resulting from ending or suspending our obligations.

13.5 However, you can still use all your legal rights and remedies (including those under condition 2.13).

NOTE 9: Claims

If the client or the builder suffers any losses or damages because the other has been negligent or broken the contract, you can claim for that.

Normally, the person who has suffered the losses or damages cannot do nothing and let the loss get worse – they have to take reasonable steps to prevent the loss from getting worse.

In particular, they must:

- Take all reasonable steps to minimise the loss.
- Not claim for any loss or damage if they could reasonably have avoided it, but failed to do so.

If the client needs to bring a claim, they must give the builder a reasonable opportunity to:

- check the alleged defects or faults; and
- put right those defects or faults. If the builder does so, at its own cost, the loss is generally avoided. However, this obligation (to allow the builder to put the defect right) may not apply if the client can establish that the builder is so incompetent that it would not do the work properly, even if given the chance to do so. If that applies, the client can ask another builder to put the defect right and claim for the costs involved.

14. Extending the work period and delaying completion

You will extend (by agreement with us) the work period by a reasonable period to take into account any one (or more) of these events:

14.1 You delay giving us access to the site, or you delay giving us instructions or fail to give us instructions relating to:

- the work,
- changes to the work (see condition 8),
- your choice of materials (see condition 5.4);

14.2 We suspend all or part of our obligations under this contract (see condition 13);

14.3 The work is delayed by a change to the work;

14.4 The work is prevented by any unexpected matter which we do not control including:

- bad weather which seriously delays or prevents us from carrying out the work;
- civil commotion, wars, riots and lock-outs.

15. Your Remedies for defects and the defects period

- 15.1 If the work does not meet the terms of this contract, you may ask us to repeat the work (which we will do within a reasonable time) or ask for a reduction in the price which we will liaise with you amicably to agree and repay within 14 days. This condition does not affect your remedies under the Consumer Rights Act 2015.

NOTE 10: The Consumer Rights Act

The Consumer Rights Act 2015 requires services to be provided with reasonable skill and care (condition 1), and goods and materials to be of satisfactory quality, reasonably fit for their purpose, matching their description and free from any defect that makes their quality unsatisfactory.

- 15.2 During the defects period, we will put right any defects in the work due to faulty workmanship or materials, unless condition 15.3 applies. We will not charge you for this.
- 15.3 We will not be responsible for any one (or more) of these defects:
- Defects due to the conditions of the site or existing property from before we began work and which we could not expect PROVIDED THAT if we consider that the condition of the site, existing property, any neighbouring property or the access to the site may affect the work, we must write and tell you this. We will have carried out our duty by giving you that warning. If you still insist that we carry out the work with the site or relevant property in this condition, you should confirm this in writing and it will be at your risk;
 - Defects caused by you or any other person or caused by any event, which happen after the end of the work period;
 - Anything excluded under condition 5.3.

NOTE 11: Periods for claims and defects

Usually the client has six years from the date when the works were complete in which to make a claim (limitation period). Sometimes – such as for claims under BSL – a longer period can apply and you may need to take legal advice on this. For six months after completion (or the period stated on page 1 if different), this contract provides for a defects liability period. This is an extra right, completely separate from, and which does not in any way restrict, the client's right to make a claim – see condition 15. If any defects, which still need action, arise after the defects liability period, the builder will come back and deal with them. If it does not, the client can recover their costs and losses.

16. Subcontracting

We can subcontract any part of the work, but we will still be responsible for completion of that work to meet this contract.

17. Clearing the site

Before the end of the work period, we will remove all rubble, surplus materials, rubbish, tools and scaffolding from the site and leave it clean and tidy. We will not be responsible for removing any items you, or any person we don't control, place on the site.

18. Disputes or differences

- 18.1 If any difference or dispute arises, either of us may ask for a meeting to be held in good faith in an effort to sort out the dispute quickly and amicably.
- 18.2 If the work is covered by an FMB Building Work Guarantee or similar insurance cover, and defects arise within the work, then the client should check the terms of their cover before contacting the insurer for advice about whether they can claim. However, this will not prevent a meeting taking place under condition 18.1 if you and we agree to have such a meeting first.
- 18.3 You or we can refer any dispute to adjudication at any time using the procedure set out in the Scheme for Construction Contracts.
- 18.4 If any matter continues to remain unresolved, either you or we may start court proceedings.

NOTE 12: Disputes and differences

As this is a domestic contract, there is no statutory right to refer a dispute to adjudication. However, the parties can choose to adjudicate or to resolve any disputes or differences by negotiation or other dispute resolution processes. Citizens Advice, www.citizensadvice.org.uk, can advise about the different types of dispute resolution. Before any such process, it may be helpful for the parties to list the points of dispute in writing so that both clearly understand the causes of the dispute.

There are certain circumstances where an FMB Building Work Guarantee, or other insurance policy may be able to assist, and some exceptions, so the builder should check the terms of cover before submitting a dispute to be resolved under condition 18.2.

While the builder is a member of FMB we can both use the FMB's free of charge Chartered Trading Standards Institute certified mediation service: visit www.fmb.org.uk to access this service.

Either of us can still issue court proceedings at any time. Whichever route you choose, please still inform FMB of the dispute and its outcome.

19. Interpretation

- If there is more than one of us or you, this contract applies to all of those people together, and to each of them on their own.
- This contract is governed by the law of England and Wales.

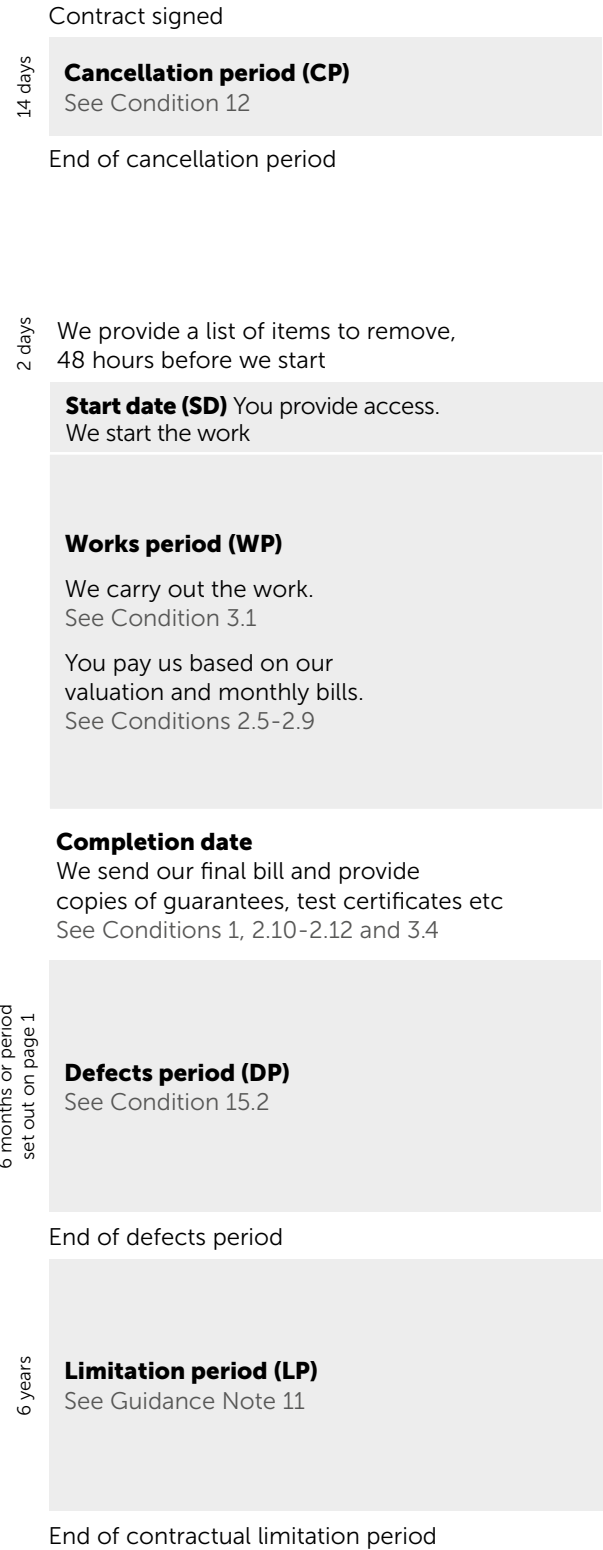
PLEASE NOTE

- The guidance notes are a general guide only. You should always get specific advice.
- The guidance notes are issued by the FMB to help the client and the builder. While it represents the FMB's view of matters, in any dispute the court will decide.
- The FMB would be interested to hear of any decisions of any tribunal or court interpreting any term of this contract. That will help the FMB to decide whether any of the current terms need changing.

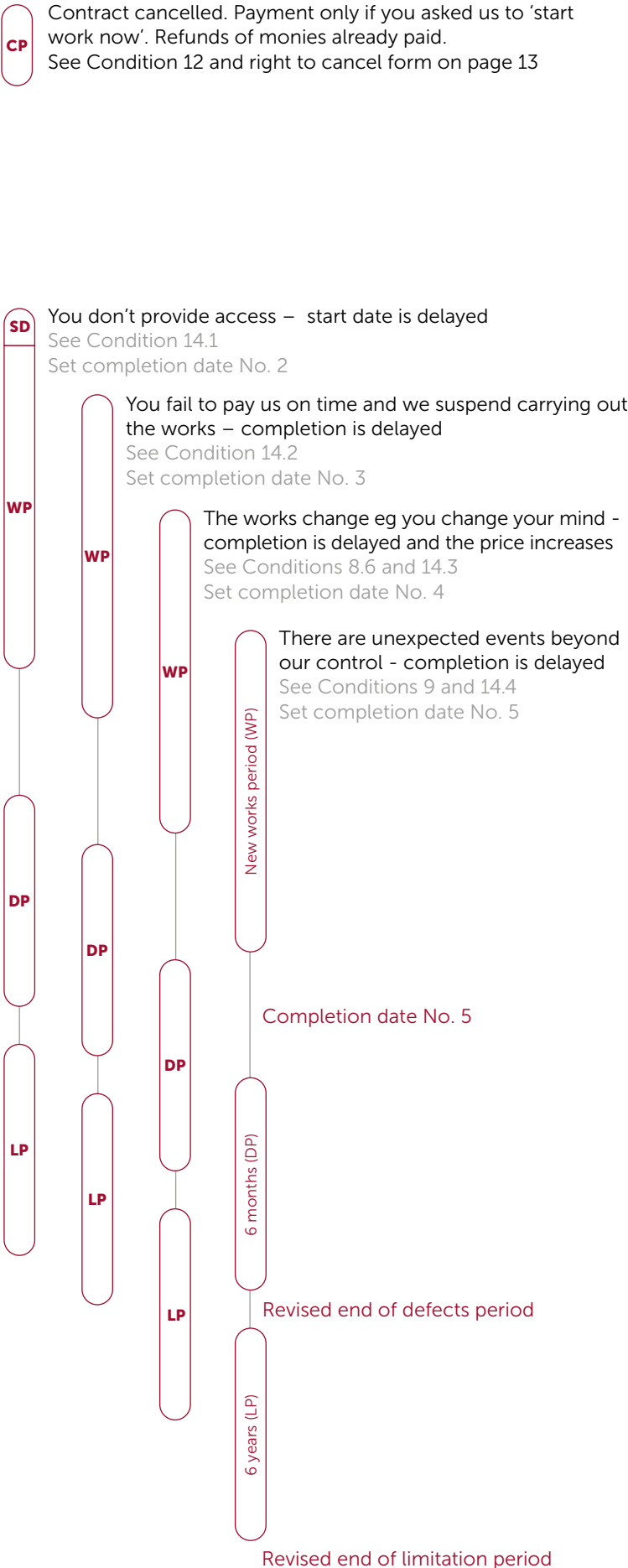
TIMELINE IMPLICATIONS



Initial timeline for work



How the timeline could change



SIMPLE CONTRACT

CONTRACT CONDITIONS

TIMELINE

RIGHTS TO CANCEL/FORM

PAYMENT SCHEDULE

Your Right to Cancel

- 1 You have the right to cancel this contract if you want to and you do not have to give a reason, provided it is within 14 days of signing this contract.
- 2 If the requested work is for urgent repairs or maintenance you do not have the right to cancel.
- 3 We will not start work under the contract until after the cancellation period has come to an end, unless you tell us to 'start work now'. If you tell us to 'start work now', you still have a right to cancel the contract within the cancellation period, but we will charge you for any work which we do, or services we provide, before we receive your cancellation notice. If you ask us to begin carrying out the work, or provide any services, during the cancellation period, you must pay us a fair amount for the work carried out, or services provided, until you told us that you are cancelling this contract.

How to Cancel this Contract

- 4 You can do this at any time within 14 days after the day on which this contract is signed by the last person (the cancellation period).
- 5 You can use this cancellation form below but you do not have to. You can send us a cancellation in any other form as long as it is clear that you want to cancel.
- 6 You must send your notice or form to the person named below at any time within the cancellation period. You can send it by first class post, email or deliver it in person.
- 7 We will treat notice of cancellation as being served as soon as we receive it (if delivered in person or by post) or the date on which you send it (if emailed or sent to us electronically).

If You Cancel

- 8 If you cancel this contract then, except when paragraph 3 applies, we will refund to you all payments we have received from you. We may deduct (or take off) an amount from this refund for loss in value of any goods/materials already delivered to you for the work, if the loss is the result of unnecessary handling by you.
- 9 We will make the refund as soon as we can, and not later than:
 - a If we delivered goods/materials to you, 14 days after the day we receive those goods/materials (which we will collect from site) or, if sooner, evidence of their return; or
 - b if we did not deliver goods/materials, 14 days after the day on which we receive your cancellation form or notice.
- 10 We will make the refund using the same method of payment you used for any payment or any other suitable method, unless you asked us to pay using a different method of payment. You will not have to pay any banking fees as a result of the refund.

Cancellation Form

WE (THE BUILDER)	
To the Builder:	(Name)
For the attention of:	(Name)
Email:	(Email)
Reference:	(Ref)
THE CLIENT	
From the Client:	(Name)
give notice that I/we want to cancel	
the contract dated:	(Date)
for the work at this address:	(Address)
Our contact details are:	(Phone)
Email:	(Email)
SIGNED	
Signed (first client):	
Signed (second client):	
Date:	

FEDERATION OF
**MASTER
BUILDERS**

Stage payments

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Domestic Building Contract

STANDARD



FEDERATION OF
**MASTER
BUILDERS**

England

We are members of the
Federation of Master Builders